

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DUANE SHIRLEY,

Plaintiff

-against-

SUMMONS

Index Number

Date Purchased:

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICERS YERALDY BONIFACIO,
SHIELD # 4233, MICHAEL DAPPOLONIA,
SERGEANT RICHARD PIMENTEL SHIELD #5439,
and POLICE OFFICERS JOHN/JANE DOE'S
#'s 1-5,

the basis for venue
is plaintiff's residence
& location of incident

Defendants.

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To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within twenty (20) days after service of this summons upon you, exclusive of the day of service, (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 24, 2018

Kyle B. Watters, Esq.
Kyle B. Watters, P.C.
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Attorney for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DUANE SHIRLEY,

Plaintiff

COMPLAINT

Index Number:

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICERS YERALDY BONIFACIO,
SHIELD # 4233, MICHAEL DAPPOLONIA,
SERGEANT RICHARD PIMENTEL SHIELD #5439,
and POLICE OFFICERS JOHN/JANE DOE'S
#'s 1-5,

Defendants.

----- X

Plaintiff, for his Verified Complaint, by his attorney, Kyle B. Watters, P.C.,

states and alleges the following upon information and belief:

The Parties

1. At all times hereinafter mentioned, the plaintiff, Duane Shirley, is a resident of the County of New York, State of New York.
2. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, [hereinafter "THE CITY"] is a municipal corporation organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintains its principal office in the County of New

York, State of New York.

4. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER YERALDY BONIFACIO, SHIELD # 4233 is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

5. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER, MICHAEL DAPPOLONIA, is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

6. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE SERGEANT RICHARD PIMENTEL SHIELD #5439 is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

7. At all times hereinafter mentioned, the defendants, NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES #1-5 are employees of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of their employment.

Conditions Precedent For The Instant Action

8. On September 12, 2017, plaintiff Duane Shirley filed a Notice of Claim with the defendant, THE CITY, for adjustment of damages sustained by the plaintiff

Duane Shirley herein.

9. On February 22, 2018, the defendant, THE CITY, took plaintiff Duane Shirley's deposition pursuant to Section 50-h of the General Municipal Law.

10. More than thirty (30) days has elapsed since serving the aforementioned Notice of Claim and to this date, the defendant, THE CITY, has neglected and refused to make adjustment thereon.

11. The earliest date of accrual for the causes of action being June 24, 2016 and August 10, 2017, less than one year and ninety (90) days has elapsed before the commencement of this action.

The Incident

12. On or about Friday, June 24, 2016 at approximately 3:00 p.m. the defendants broke down the door to plaintiff's residence at 359 West 117th Street in Manhattan without a warrant or probable cause or legal justification to break down the door to or enter or remain in his home.

13. Defendants thereafter rear handcuffed plaintiff.

14. Defendants then took plaintiff Duane Shirley who was dressed only in his underwear outside of his apartment.

15. Defendants took plaintiff Duane Shirley to the 28th precinct where he was locked in a cell.

16. At approximately 8:00 p.m. on June 24, 2016, defendants took plaintiff

Duane Shirley to Central Booking in downtown Manhattan.

17. At approximately 3:00 p.m. on June 25, 2016, plaintiff Duane Shirley was taken before a judge and released on his own recognizance.

18. At plaintiff Duane Shirley's arraignment, defendants caused to be filed criminal charges against plaintiff Duane Shirley which had no basis in fact or law.

19. Plaintiff Duane Shirley was made to make twelve (12) court appearances on case Docket Number 2016NY039061 to face the charges brought by defendants.

20. On August 10, 2017, the court dismissed all charges brought by defendants against plaintiff Duane Shirley.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
AS TO DUANE SHIRLEY
FALSE ARREST

21. Plaintiff Duane Shirley repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs "1" through "20" of this Complaint, with the same force and effect as if more fully set forth herein.

22. At the above time and place, plaintiff, Duane Shirley, was illegally arrested, stopped and detained by defendants, through the actions of its agents, employees and officer(s), named and those as yet unknown (all within the scope of their employment), in violation of his rights under the New York State Constitution and New York State Law.

23. At the above time and place, plaintiff, Duane Shirley, was consciously aware of his physical arrest, did not consent to it, and was otherwise harmed by it.

24. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

25. Plaintiff, Duane Shirley, was illegally seized and detained for a period of time by the aforementioned defendants. These actions of said defendants constituted false arrest as to plaintiff, Duane Shirley.

26. As a consequence of said defendants' actions, plaintiff, Duane Shirley was deprived of his freedom for a period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

27. The defendants involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity, upon information and belief, to intervene to prevent such false arrest from occurring.

28. By reason of the foregoing, plaintiff, Duane Shirley, has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS
DUANE SHIRLEY
MALICIOUS PROSECUTION

29. Plaintiff, Duane Shirley, repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs “1” through “28” of this Complaint, with the same force and effect as if more fully set forth herein.

30. Defendants maliciously and without reasonable or probable cause, caused plaintiff Duane Shirley to be charged with various crimes and to be prosecuted by the New York County District Attorney’s Office.

31. As a result of the foregoing, plaintiff Duane Shirley has been injured in his good name and reputation, has been subjected to great indignity and humiliation, pain and distress of mind and body, and has been prevented from attending to his usual business.

32. By reason of the foregoing, plaintiff Duane Shirley has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

WHEREFORE, the plaintiff Duane Shirley demands judgment against the defendants on the First Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Second Cause of Action in a sum in excess of the jurisdictional threshold of this Court, and demands such other further and different relief which the Court deems just and proper.

Dated: New York, New York
August 24, 2018

Handwritten signature of Kyle B. Watters in black ink.

Kyle B. Watters
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